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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ CRL.M.C. 1841/2017 and Crl. M.A. nos. 7535-36/2017

JYOTI JAIN Petitioner

Through Mr. Suresh Chandra Sharma, Adv.

versus

R K STOCKHOLDING PVT LTD. Respondent

Through Mr. Pawan K. Bahl, Adv.

AND

+ CRL.M.C. 1843/2017 and Crl. M.A. no. 7542/2017

RITA JAIN Petitioner

Through Mr. Suresh Chandra Sharma, Adv.

versus

R K STOCKHOLDING PVT LTD. Respondent

Through Mr. Pawan K. Bahl, Adv.

CORAM:

HON'BLE MR. JUSTICE A.K. PATHAK

ORDER

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05.09.2018

By way of present petitions under Section 482 Cr.P.C., petitioners have prayed for quashing of complaint case no. 533242 of 2016 titled R.K. Stockholding Pvt. Ltd. vs. Jyoti Financial Consultant Pvt. Ltd. & Others.



Petitioners have been impleaded as accused nos. 2 and 3, being the Directors of M/s. Jyoti Financial Consultant Pvt. Ltd. Issuance of the cheques has not been disputed. However, it is alleged that the cheques were issued on 17th November, 2011 as security cheques and not to clear any legal liability. It is contended that respondent tempered the date from 17th November, 2011 to 17th November, 2014. M/s. Jyoti Financial Consultant Pvt. Ltd., vide letter dated 21st November, 2011 written to the State Bank of India, New Friends Colony, New Delhi, had stopped the payments of the said cheques. FIR has been lodged in the Police Station regarding tampering of dates on the cheques. Thus, complaint case is not maintainable and is liable to be quashed.

Respondent has specifically alleged in the complaint that in the month of September, 2011 accused persons had approached the respondent and expressed their desire to avail the services of complainant's company for purchase/sale/trading of securities/derivatives on the floor of National Stock Exchange/Bombay Stock Exchange. They requested for temporary funding for the trading also. Accused persons executed Member & Constituent Agreement and other necessary agreements/documents and started availing services of respondent after opening Demat/Trading account in the name of



M/s. Jyoti Financial Consultant Pvt. Ltd. Accused persons were irregular in payment of their liabilities towards the complainant company since the beginning and their outstanding balance in complainant's books kept on increasing day-by-day. By the end of August, 2012, outstanding amount accumulated to ₹50,00,000/-. In the month of May, 2014, accused persons approached the respondent and showed their willingness to settle the matter amicably. Accordingly, two cheques bearing cheque no. 206821 dated 17th November, 2014 for ₹10,00,000/- and cheque no. 206823 for ₹5,00,000/- both drawn on State Bank of India, New Friends Colony, New Delhi, were issued to clear part liabilities. However, on presentation, the said cheques were returned dishonoured with the remarks "payment stopped by drawer", vide bank return memos dated 10th February, 2015. Despite legal notice, the amount was not paid. Hence, the complaint.

Learned counsel for the respondent submits that allegations and counter allegations are subject matter of trial. The plea taken by the petitioners is at best their defence, which they have to prove during the trial. I am of the view that pleas taken by the petitioners that the cheques were manipulated and/or same were issued as security in the year 2011 are subject matter of trial. Disputed questions of facts cannot be decided by the High



Court in exercise of inherent power under Section 482 Cr.P.C. Respondent specifically alleged in the complaint that cheques were issued on 17th November, 2014 to clear outstanding liabilities. This fact has been disputed. As per the petitioners, cheques have been manipulated. Veracity of allegations and counter-allegations can be tested only during the trial. At this stage, averments made in the complainant have to be taken on its face value and cannot be discarded without a trial. In my view, complaint cannot be quashed at this stage by this Court in exercise of the inherent jurisdiction under Section 482 Cr.P.C.

Petitions are dismissed with costs of ₹15,000/- each to be deposited in Kerala Chief Minister's Distress Relief Fund within two weeks. No other petition of the petitioners be entertained by the Registry unless receipts evidencing the deposit of costs are produced.

Miscellaneous applications are disposed of as infructuous.


A.K. PATHAK, J.

SEPTEMBER 05, 2018
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